

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.165	0.161	0.010	0.257	0.120
Trial Fee-Shifting	0.165	0.150	0.018	0.257	0.106

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.181	0.147	0.010	0.269	0.107
Trial Fee-Shifting	0.166	0.145	0.009	0.259	0.091